

**UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE DIRECTOR OF THE
UNITED STATES PATENT AND TRADEMARK OFFICE**

In the Matter of	)	
	)	
Justin K. Lampel,	)	Proceeding No. D2026-13
	)	
Respondent	)	
_____	)	

FINAL ORDER PURSUANT TO 37 C.F.R. § 11.26

The Director of the Office of Enrollment and Discipline (“OED Director”) for the United States Patent and Trademark Office (“USPTO” or “Office”) and Mr. Justin K. Lampel (“Respondent”) have submitted a Proposed Settlement Agreement (“Agreement”) to the Under Secretary of Commerce for Intellectual Property and Director of the United States Patent and Trademark Office (“USPTO Director”) for approval.

The Agreement, which resolves all disciplinary action by the USPTO arising from the stipulated facts set forth below, is hereby approved. This Final Order sets forth the parties’ stipulated facts, legal conclusions, and sanctions.

Jurisdiction

1. At all times relevant hereto, Respondent of Northbrook, Illinois, is a registered patent attorney (Registration Number 51,264). Respondent is subject to the USPTO Rules of Professional Conduct, 37 C.F.R. § 11.101 *et seq.*
2. The USPTO Director has jurisdiction over this matter pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26.

Legal Background

USPTO Patent Signature Rules

3. The USPTO’s signature requirements for patent correspondence (e.g., entity status determinations, application data sheets, and inventor declarations) are found, in part, at 37 C.F.R. § 1.4(d), which states:

(1) Handwritten signature. Each piece of correspondence, except as provided in paragraphs (d)(2), (d)(3), (d)(4), (e), and (f) of this section, filed in an application, patent file, or other proceeding in the Office which requires a person's signature, must:

- (i) Be an original, that is, have an original handwritten signature personally

signed, in permanent dark ink or its equivalent, by that person; or

(ii) Be a direct or indirect copy, such as a photocopy or facsimile transmission (§ 1.6(d)), of an original. In the event that a copy of the original is filed, the original should be retained as evidence of authenticity. If a question of authenticity arises, the Office may require submission of the original.

(2) S-signature. An S-signature is a signature inserted between forward slash marks, but not a handwritten signature as defined by paragraph (d)(1) of this section. An S-signature includes any signature made by electronic or mechanical means, and any other mode of making or applying a signature other than a handwritten signature as provided for in paragraph (d)(1) of this section. Correspondence being filed in the Office in paper, by facsimile transmission as provided in § 1.6(d), or via the USPTO patent electronic filing system as an attachment as provided in § 1.6(a)(4), for a patent application, patent, or a reexamination or supplemental examination proceeding may be S-signature signed instead of being personally signed (*i.e.*, with a handwritten signature) as provided for in paragraph (d)(1) of this section. The requirements for an S-signature under this paragraph (d)(2) of this section are as follows.

(i) The S-signature must consist only of letters, or Arabic numerals, or both, with appropriate spaces and commas, periods, apostrophes, or hyphens for punctuation, and the person signing the correspondence must insert his or her own S-signature with a first single forward slash mark before, and a second single forward slash mark after, the S-signature (e.g.,/Dr. James T. Jones, Jr./); and

(ii) A patent practitioner (§ 1.32(a)(1)), signing pursuant to §§ 1.33(b)(1) or 1.33(b)(2), must supply his/her registration number either as part of the S-signature, or immediately below or adjacent to the S-signature. The number (#) character may be used only as part of the S-signature when appearing before a practitioner's registration number; otherwise the number character may not be used in an S-signature.

(iii) The signer's name must be:

(A) Presented in printed or typed form preferably immediately below or adjacent the S-signature, and

(B) Reasonably specific enough so that the identity of the signer can be readily recognized.

See 37 C.F.R. § 1.4(d).

4. A patent document is to be signed by the named signatory. *See* 37 C.F.R. § 1.4(d)(4)(ii) (“The person inserting a signature under paragraph (d)(2) or (d)(3) of this section in a document submitted to the Office certifies that the inserted signature appearing in the document is his or her own signature. A person submitting a document signed by another under paragraph (d)(2) or (d)(3) of this section is obligated to have a reasonable basis to believe that the person whose signature is present on the document was actually inserted by that person, and should retain evidence of authenticity of the signature. Violations of the certification as to the signature of another or a person’s own signature as set forth in this paragraph may result in the imposition of sanctions under § 11.18(c) and (d) of this chapter.”).

Micro Entity Status for Certain Patent Applicants

5. Certain applicants and patent owners can benefit from a significant reduction on most USPTO fees if they qualify and file the appropriate papers in their application or patent. To benefit from this fee reduction, applicants and patentees must establish “micro entity” status pursuant to 37 C.F.R. § 1.29. *See generally* Manual of Patent Examining Procedure (“MPEP”) § 509.04.

6. There are two separate bases for establishing micro entity status. One is referred to as the “gross income basis” under 35 U.S.C. § 123(a), and the other is referred to as the “institution of higher education basis” under 35 U.S.C. § 123(d). *See* MPEP § 509.04 (“II. Bases for Establishing Micro Entity Status.”) Under the “gross income” basis for establishing micro entity status, there is a limit to the number of previously filed applications for an applicant to qualify for micro entity status.

7. In order to qualify as a micro entity, patent applicants must certify that:

- (1) the applicant qualifies as a small entity as defined in § 1.27;
- (2) neither the applicant nor the inventor nor a joint inventor has been named as the inventor or a joint inventor on more than four previously filed patent applications;
- (3) neither the applicant nor the inventor nor a joint inventor, in the calendar year preceding the calendar year in which the applicable fee is being paid, had a gross income . . . exceeding three times the median household income for that preceding calendar year; and
- (4) neither the applicant nor the inventor nor a joint inventor has assigned, granted, or conveyed, nor is under an obligation by contract or law to assign, grant, or convey, a license or other ownership interest in the application concerned to an entity that . . . had a gross income . . . exceeding three times the median household income for that preceding calendar year

See generally 37 C.F.R. § 1.29; MPEP § 509.04 (underline added).

Calculating the “Previously Filed Patent Applications” Limit

8. For purposes of establishing micro entity status under the “gross income” basis, the application filing limit includes: (i) previously filed U.S. nonprovisional applications (e.g., utility, design, plant, continuation, and divisional applications), (ii) previously filed U.S. reissue applications, and (iii) previously filed U.S. national stage applications under the Patent Cooperation Treaty (PCT). *See* MPEP § 509.04(a) (“B. Application Filing Limit”).
9. “All such applications naming the inventor or a joint inventor are counted toward the application filing limit, whether the applications were filed before, on, or after March 19, 2013. Further, it does not matter whether the previously filed applications are pending, patented, or abandoned; they are still included when counting to determine whether the application filing limit has been reached.” MPEP § 509.04(a) (“B. Application Filing Limit”).
10. “The application filing limit does not include: (i) foreign applications; (ii) international (PCT) applications for which the basic U.S. national stage filing fee was not paid; and (iii) provisional applications. In addition, where an applicant, inventor, or joint inventor has assigned, or is under an obligation by contract or law to assign, all ownership rights in the application as the result of the applicant’s, inventor’s, or joint inventor’s previous employment; the applicant, inventor or joint inventor is not considered to be named on the prior filed application for purposes of determining micro entity status. *See* 37 C.F.R. 1.29(b).” MPEP § 509.04(a) (“B. Application Filing Limit”).
11. “Because the four-application limit is a limit on previously filed U.S. nonprovisional applications, reissue applications, and national stage applications, the maximum number of applications in which fees can be paid at the micro entity discount rate can vary from 0 to 5 for any given inventor.” MPEP § 509.04(a) (“B. Application Filing Limit”).

Certification of Micro Entity

12. “35 U.S.C. 123 requires a certification as a condition for an applicant to be considered a micro entity. The certification must be in writing and must be filed prior to or at the time a fee is first paid in the micro entity amount in an application or patent.” MPEP § 509.04.
13. “A fee may be paid in the micro entity amount only if it is submitted with, or subsequent to, the submission of a certification of entitlement to micro entity status. *See* 37 C.F.R. § 1.29(f).” MPEP § 509.04.
14. “Any attempt to fraudulently establish status or pay fees as a micro entity shall be considered as a fraud practiced or attempted on the Office. Improperly, and with intent to deceive, establishing status or paying fees as a micro entity shall be considered as a fraud practiced or attempted on the Office. *See* 37 C.F.R. 1.29(j).” MPEP § 509.04.

Statutory Penalties for False Assertions or Certifications of Small and Micro Entity Status

15. Registered practitioners are reasonably aware that, as part of the USPTO's continuing efforts to mitigate threats to the U.S. patent system and to protect that system's integrity, the USPTO rules of patent practice include statutory penalties for falsely made assertions or certifications of small and micro entity status. *See* 35 U.S.C. §§ 41(j) and 123(f). As required by statute, the USPTO assesses a fine of not less than three times the amount an entity failed to appropriately pay the USPTO when the entity is found to have falsely made an assertion or certification of small or micro entity status, unless the entity shows that the assertion or certification was made in good faith. *See* 35 U.S.C. §§ 41(j) and 123(f); *see also* 15 *Official Gazette* 204 (July 8, 2025).

16. As of July 8, 2025, the USPTO began issuing a combined notice of payment deficiency and order to show cause as to why a fine should not be assessed when the USPTO makes a preliminary determination that a pending patent application or patent contains a false assertion or certification that resulted in the payment of at least one fee in an unentitled reduced amount. 15 *Official Gazette* at 204. The agency issues a subsequent notice to provide a final determination of whether a fine is being assessed, and the fine amount, based on any timely response to the combined notice and order to show cause, and the record as a whole. *Id.* An entity is subject to the penalty provisions only when inappropriately discounted fees were paid on or after December 29, 2022. *Id.* at 206.

Certifications to the USPTO when Presenting Papers

17. Registered practitioners make important certifications via 37 C.F.R. § 11.18 whenever presenting (*e.g.*, by signing, filing, submitting, or later advocating) any paper to the USPTO.

18. The registered practitioner certifies that all statements made on his or her own knowledge are true, and that all statements based on the presenter's information and belief are believed to be true. *See* 37 C.F.R. § 11.18(b)(1).

19. The registered practitioner also certifies that:

[t]o the best of the party's knowledge, information and belief, *formed after an inquiry reasonable under the circumstances* (i) the paper is not being presented for any improper purpose, such as to harass someone or to cause unnecessary delay or needless increase in the cost of any proceeding before the Office; (ii) the other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law; (iii) the allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and (iv) the denials of factual contentions are warranted on the evidence, or if specifically so identified, are reasonably based on a lack of information or belief.

37 C.F.R. § 11.18(b)(2) (emphasis added). Accordingly, a registered practitioner who presents

any paper to the USPTO—including certifications of micro entity status— certifies that he or she has conducted an inquiry reasonable under the circumstances that supports the factual assertions set forth in the paper. *See* 37 C.F.R. § 11.18(b)(2)(iii).

20. Violations of § 11.18 may jeopardize the probative value of the filing, and any false or fraudulent statements are subject to criminal penalty under 18 U.S.C. § 1001. *See* 37 C.F.R. § 11.18(b)(1).

21. Any registered practitioner who violates the provisions of this section may also be subject to disciplinary action. *See* 37 C.F.R. § 11.18(d).

Joint Stipulated Facts

22. Respondent of Northbrook, Illinois, is a registered patent attorney (Registration Number 51, 264).

23. Respondent is also licensed to practice in California (California Bar No. 320133) and in Illinois (Full Licensed Name: Justin Kyle Lampel).

Signature Issues with Power of Attorney Forms

24. Respondent was hired by Guangdong Litinso Intellectual Property Co., Ltd.¹ Shenzhen Branch, Room 809, 8F, Chuangjian Building, No. 6023, Shennan Boulevard South, Futian District, Shenzhen, Guangdong, China (“Litinso”) in 2021 to correct improper micro entity certifications for their clients who had patent applications pending before the USPTO.

25. Respondent filed Power of Attorney forms (“POAs”) in approximately thirteen (13) patent applications and became the practitioner of record for the applicants to transact business in those applications, including taking appropriate action to correct the improper micro entity certifications.

26. Respondent, instead of submitting the POAs signed by inventor(s)/applicant(s) that were in his possession, filed POAs where Respondent personally signed inventor(s)/applicant(s) name between the slash marks, in violation of the USPTO signature requirements as set forth in 37 C.F.R. § 1.4(d)(2) and the USPTO Rules of Professional Conduct.

27. Respondent represents that he was not aware at the time of his signing that the person signing the correspondence must insert his or her own S-signature between the slash marks.

28. Respondent is now aware of the signature requirements under 37 C.F.R. § 1.4 and (a) represents to OED that he will not sign another person’s name to any document submitted to the USPTO and (b) represents to OED that he is now copied on correspondence between inventor/applicant and the foreign associate ensuring POA authenticity and will only submit to the USPTO POAs that are provided and signed directly by inventor/applicant.

¹ Translated as 广东利天下知识产权有限公司.

Improper Micro Entity Certifications

29. Respondent represented to OED that between 2021 and 2024 foreign associates (“Foreign Associates”) hired him to file design applications for referred inventor(s)/applicant(s) claiming, *inter alia*, micro entity status.
30. Respondent represented to OED that the Foreign Associates provided micro entity certifications forms signed by the inventor(s)/applicant(s) for most of these applications.
31. Respondent represented to OED, that in some instances, instead of filing the inventor/applicant signed micro entity certification form, he personally signed the micro entity certification as Respondent in reliance on the certification forms and/or statements of the Foreign Associates provided by the Foreign Associates.
32. As early as 2021, Respondent was on notice that one of the Foreign Associates, Litinso, had provided him with micro entity certifications signed by inventor(s)/applicant(s) that did not meet the 37 C.F.R. § 1.29(a) requirements.
33. Respondent represented to OED that he relied on the Foreign Associates to provide client attestations regarding entitlement to micro or small entity status even though he was on notice that some of the Foreign Associates provided micro entity certifications that were improper.
34. Respondent represented to OED that his docketing system was set to search on the names of Foreign Associates and not the name of the applicant(s)/inventor(s); therefore, his searches could not, and did not, determine if he had previously filed more than four (4) patent applications for each inventor(s)/applicant(s).
35. Respondent acknowledged that he personally filed six (6) patent applications claiming micro entity status, where he had previously filed four (4) patent applications for the same applicant(s)/inventor(s). He acknowledged that these applications were not entitled to the micro entity fee reduction
36. Respondent represents that he filed the certifications for his client’s eligibility based on statements provided to him by Foreign Associates stating that the client qualified for micro entity status and those statements by the Foreign Associates were determined to be incorrect. Respondent also represents that he was unaware that the statements provided to him by the Foreign Associates were incorrect at the time that Respondent filed the applications. Respondent acknowledges that Respondent should have investigated the statements by the Foreign Associates more thoroughly, including making appropriate reasonable inquiry after being put on notice, on or about 2021, that Litinso referred applicants were providing false micro entity certifications.
37. The USPTO issued a Notice of Additional Fees Due in light of Respondent’s false certifications of eligibility of micro entity status in six (6) applications.

38. Respondent now acknowledges that he did not conduct a reasonable inquiry or maintain adequate procedures regarding the incorrect micro entity certifications referenced in this Agreement. Respondent represents that he did not intend to deceive or defraud the Office in connection with those micro entity certifications

39. In response to the notices, Respondent changed the applicant's entity status and paid the deficient amount in five (5) of the applications. He did not respond to one (1) of the notices, where applicant instructed Respondent that the application was no longer being pursued.

40. Respondent represents that his errors represented a very small percentage of his thousands of patent application filings Respondent has done for Foreign Associates.

41. Respondent represents that his law firm has implemented a comprehensive review of his prior docket and implemented an enhanced tracking system for an inventor's count of prior applications, terminated relationships with many of the Foreign Associates that provided improper micro entity certifications (e.g., Respondent is no longer working with Litinso with respect to new applications), and created new procedures for himself and his law firm to ensure that the proper entity entitlements are checked going forward, including providing Foreign Associates with checklists for entitlements. Further, Respondent represents that he has also paused accepting micro entity cases from Foreign Associates until new procedures are in place for Respondent to verify applicant/inventor micro entity attestations provided by Foreign Associates.

Additional Considerations

42. Respondent has never been the subject of professional discipline by the USPTO, and he represents that he has not been disciplined on ethical grounds by any other jurisdiction.

43. Respondent has demonstrated genuine contrition and accepted responsibility for his acts and omissions.

44. Respondent has cooperated with the Office's investigation and implemented remedial measures intended to prevent recurrence.

Joint Legal Conclusions

45. Respondent acknowledges that, based on the information contained in the joint stipulated facts, above, Respondent's acts and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.101 (requiring a practitioner to provide competent representation to a client) by, *inter alia*, (i) representing clients before the Office in patent matters without adequately understanding the USPTO patent signature rules or guidance set forth in the USPTO Manual of Patent Examining Procedure and (ii) presenting power of attorney forms that violated the USPTO signature requirements;

- b. 37 C.F.R. § 11.103 (diligence) by, *inter alia*, (i) not conducting a reasonable inquiry under the circumstances pursuant to 37 C.F.R. § 11.18 prior to signing and presenting certifications of micro entity status to the USPTO, and (ii) failing to have in place adequate procedures to ensure that certifications of micro entity status complied with USPTO regulations and, instead, relying on the clients' or other persons' erroneous representations; and
- c. 37 C.F.R. § 11.804(d) (conduct prejudicial to the administration of justice, i.e., conduct prejudicial to the patent examination and issuance process) by, *inter alia*, (i) presenting approximately thirteen (13) impermissibly signed power of attorney forms where the named signatory had not signed the document, (ii) not conducting a reasonable inquiry under the circumstances pursuant to 37 C.F.R. § 11.18 prior to signing and presenting certifications of micro entity status to the USPTO, (iii) failing to have in place adequate procedures to ensure that certifications of micro entity status complied with USPTO regulations and, instead, relying on the clients' or other persons' erroneous representations, and (iv) claiming micro entity eligibility when the underlying applicants were not so entitled.

Agreed-Upon Sanction

46. Respondent agrees and it is hereby ORDERED that:

- a. Respondent shall be, and hereby is, publicly reprimanded;
- b. The OED Director shall electronically publish this Final Order at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;
- c. The OED Director shall publish a notice in the *Official Gazette* that is materially consistent with the following:

Notice of Public Reprimand

This notice concerns Justin K. Lampel of Northbrook, Illinois, who is a registered patent attorney (Registration Number 51,264). He is also licensed to practice law in California (California Bar No. 320133) and in Illinois (Full Licensed Name: Justin Kyle Lampel). Mr. Lampel is hereby reprimanded for violating 37 C.F.R. §§ 11.101 (requiring a practitioner to provide competent representation to a client), 11.103 (failing to act with reasonable diligence in representing a client) and 11.804(d) (engaging in

conduct that is prejudicial to the integrity of the patent application process). The reprimand is predicated on Mr. Lampel's violations of these provisions of the United States Patent and Trademark Office ("USPTO") Rules of Professional Conduct in connection with the submission of improperly signed power of attorney forms ("POAs") in patent applications and incorrect Certifications of Micro Entity Status in certain patent applications. *See* 37 C.F.R. §§ 1.4(d) and 1.29(a)(2).

Mr. Lampel presented to the USPTO approximately thirteen (13) improperly signed POAs where he personally signed inventor(s)/applicant(s) name between the slash marks, in violation of the USPTO signature requirements, instead of submitting the original inventor/applicant signed POAs that were in his possession.

Mr. Lampel presented to the USPTO six (6) micro entity certifications where his clients did not qualify for a micro entity discount. In accordance with the agency's micro entity status rules and regulations, the USPTO issued Notices of Payment Deficiency in six (6) of the applications. In response to the notices, Mr. Lampel changed the applicant's entity status and paid the deficient amount in five (5) of the six (6) applications.

Mr. Lampel relied upon Guangdong Litinso Intellectual Property Co., Ltd. (translated as 广东利天下知识产权有限公司) to verify each client's business structure and patent filing history. He acknowledges that such reliance was inadequate and has since implemented changes to his practice to ensure he verifies applicants' entity status prior to paying the corresponding fees, including verifying client attestations regarding their qualification for micro or small entity status against information in his docketing system.

All practitioners, including registered practitioners, should be aware that when they present any paper to the USPTO—including certifications of micro entity status—they are certifying, *inter alia*, that they have conducted an inquiry reasonable under the circumstances as to the factual assertions set forth in the paper. *See* 37 C.F.R. § 11.18(b)(2)(iii).

Registered practitioners should be reasonably aware that, as part of the USPTO's continuing efforts to mitigate threats to the U.S. patent system and to protect that system's integrity, the USPTO rules of patent practice include statutory penalties for falsely made assertions or certifications of small and micro entity status. *See* 35 U.S.C. §§ 41(j) and 123(f). False certifications unjustly diminish the monetary resources of the USPTO, and false certifications on petitions or requests to expedite examination result in applications being unjustly advanced out of turn.

Furthermore, as of July 8, 2025, the USPTO began issuing a combined notice of payment deficiency and order to show cause as to why a fine should not be assessed when the USPTO makes a preliminary determination that a pending patent application or patent contains a false assertion or certification that resulted in the payment of at least one fee in an unentitled reduced amount. 1536 *Official Gazette* 128, 204 (July 8, 2025). The agency issues a subsequent notice to provide a final determination of whether a fine is being assessed, and the fine amount, based on any timely response to the combined notice and order to show cause, and the record as a whole. *Id.* An entity is subject to the penalty provisions only when inappropriately discounted fees were paid on or after December 29, 2022. *Id.* at 206.

This action is the result of a settlement agreement between Mr. Lampel and the OED Director pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners are posted for public reading at the Office of Enrollment and Discipline Reading Room online at: <https://foiadocuments.uspto.gov/oed/>;

- d. Nothing in the Agreement or this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including the Final Order: (1) when addressing any further complaint or evidence of the same or similar misconduct concerning Respondent brought to the attention of the Office; (2) in any future disciplinary proceeding against Respondent (i) as an aggravating factor to be taken into consideration in determining any discipline to be imposed, and/or (ii) to rebut any statement or representation by or on Respondent's behalf;
- e. Respondent waives all rights to seek reconsideration of this Final Order under 37 C.F.R. § 11.56, waives the right to have this Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge this Final Order in any manner; and
- f. Each party shall each bear their own costs incurred to date and in carrying out the terms of the Agreement and this Final Order.

TRICIA CHOE

Digitally signed by TRICIA CHOE
Date: 2026.03.13 09:44:02 -04'00'

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

John A. Squires
Under Secretary of Commerce for Intellectual Property and
Director of the United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing Final Order was sent, on this day, to the parties in the manner indicated below:

Via first-class certified mail, return receipt requested:

Mr. Justin K. Lampel
Lampel Law, P.C.
555 Skokie Boulevard, Suite 500
Northbrook, IL 60062
Respondent

Via email:

Lena Munasifi
[REDACTED]
Counsel for OED Director

3/13/2026
Date


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